

HOUSE BILL 1435

By Gant

AN ACT to amend Chapter 167 of the Private Acts of 1994; as amended by Chapter 39 of the Private Acts of 2020; Chapter 52 of the Private Acts of 2022 and Chapter 30 of the Private Acts of 2023; and any other acts amendatory thereto, relative to Town of Oakland.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Chapter 167 of the Private Acts of 1994, as amended by Chapter 39 of the Private Acts of 2020 and any other acts amendatory thereto, is amended in Section 5 by deleting the Section in its entirety and by substituting instead the following:

SECTION 5.

1. Be it further enacted that beginning in 2020, a non-partisan election shall be held on the first (1st) Tuesday after the first (1st) Monday in November of every even-numbered year concurrent with the regular election to elect a Board of Mayor and Aldermen. Terms of office for the Mayor and Aldermen shall begin upon their swearing in on the first business day of the month next succeeding the month of their election, provided election results by the County Election Commission are certified.

2. It is the intent of this subsection to designate the existing five (5) aldermanic positions as positions one (1) through five (5). In filing for election, any candidate for Alderman shall select and identify the position sought. The Mayor and Aldermen shall be elected from the Town at large and one (1) Alderman shall be elected to each position. The candidate receiving the highest number of votes in an election for each designated position shall be declared elected as Mayor or Alderman. In the event of a tie vote in any Mayor or Alderman's election, the incumbent board shall decide by majority vote which of the candidates shall serve.

3. On the first (1st) Tuesday after the first (1st) Monday in November 2026, there shall be elected three (3) of the Town's five (5) aldermen which shall be held for aldermen's positions one (1), two (2), and three (3). Persons elected on that date shall serve for a term of four (4) years. On the first (1st) Tuesday after the first (1st) Monday in November 2028, elections shall be held for the position of Mayor and Aldermen's positions four (4) and five (5). Persons elected on that date shall serve terms of four (4) years. Such staggered elections shall continue thereafter. The Mayor and any Alderman shall be eligible for reelection provided they continue to meet all requirements for those offices.

4. If according to the 2020 federal census or any subsequent census, the population of the Town is eighteen thousand (18,000) or more, the Board shall have the option to increase the number of aldermen to six (6) by ordinance. After the adoption of such an ordinance, in the next regular Town election, voters shall be entitled to vote for three (3) aldermen, or four (4) aldermen, as the case may be; however, if there is a new aldermanic position created, such newly created aldermanic position shall be designated as position six (6).

5. Nothing in this Section 5 shall be construed to remove any incumbent from office or abridge the term of any incumbent prior to the end of the term for which an elected official was selected.

6. Before a person takes any office in the Town government, he shall subscribe to the following oath or affirmation: "I solemnly swear (or affirm) that I will support the Constitution and will obey the laws of the United States and of the State of Tennessee, that I will, in all respects, observe the provisions of the Charter and ordinances of the Town of Oakland, and that I will faithfully discharge the duties of the office of _ _ _ _ _."

7. Any qualified elector who has been a resident of the Town for at least one (1) year may be qualified as a candidate for Mayor or Alderman.

SECTION 2. Chapter 167 of the Private Acts of 1994, as amended by Chapter 39 of the Private Acts of 2020, Chapter 30 of the Private Acts of 2023, and any other acts amendatory thereto, is amended in Section 7 by deleting subsection 2 in its entirety, and by substituting instead the following:

2. The compensation of the Mayor and Aldermen shall be set by ordinance, but the salary of the Mayor or any Alderman shall not be changed during their term of office. Compensation for all outgoing elected officials shall be paid through the end of the month during which the election is held. All newly elected officials shall be compensated beginning the first (1st) day of the month next succeeding the month of their election. The Mayor, Aldermen, and Town Attorney may be reimbursed for actual and necessary expenses incurred in the conduct of their official duties.

SECTION 3. Nothing in this act shall be construed to remove any incumbent from office, abridge the term of any incumbent, or alter the salary of any incumbent prior to the end of the term for which such elected official was selected, as prescribed in Article XI, Section 9 of the Constitution of the State of Tennessee.

SECTION 4. This act shall have no effect unless it is approved by a two-thirds (2/3) vote of the legislative body of the Town of Oakland. Its approval or non-approval shall be proclaimed by the presiding officer of the legislative body of the Town of Oakland and certified by him to the secretary of state.

SECTION 5. For the purpose of approving or rejecting the provisions of this act, it shall be effective upon becoming law, the public welfare requiring it. For all other purposes, it shall become effective upon being approved as provided in Section 4.